

23STCV03400 23STCV03400

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-13

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Case Number: 23STCV03400 Hearing Date: July 13, 2026 Dept: 512

HEARING DATE: Mon., July 13, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Abhari v. Farmers Ins. Exchange, et al.

CASE NUMBER: 22STCV24750/23STCV03400

SERVICE: NO

PROCEEDINGS: MOTION FOR CLARIFICATION

MOVING PARTY: Plaintiff Zia Abhari

RESP. PARTY: Defendants Farmers Group, Inc. dba Farmers Underwriters Association; Truck Underwriters Association; Farmers Insurance Exchange; and Truck Insurance Exchange

MOTION FOR CLARIFICATION

TENTATIVE RULING:

Plaintiff Zia Abhari's Motion for Clarification as to the Costs Award in Case No. 23STCV03400 is DENIED.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☐ Correct Address (CCP §§ 1013, 1013a) NO

[X] 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

ANALYSIS:

I. Background

On October 6, 2025, the Court entered judgment for costs in favor of all Defendants Farmers Insurance Exchange, Truck Insurance Exchange, and Frieda Swedelson and against Plaintiffs Zia Abhari and Donya Entertainment, Inc. (10/6/25 Order.)

On November 25, 2025, the Court, in pertinent part, denied Plaintiffs' Motion for Clarification regarding the Court's Statement of Decision. (11/25/25 Order.)

On January 6, 2026, the Court issued an amended judgment for costs in favor of all Defendants Farmers Insurance Exchange, Truck Insurance Exchange, and Frieda Swedelson and against Plaintiffs Zia Abhari and Donya Entertainment, Inc. (1/6/26 Amended Judgment.)

On April 27, 2026, Plaintiff Abhari filed the instant Motion for Clarification as to the Costs Award in Case Number 23STCV03400 (the "Motion").

On June 17, 2026, Defendants Farmers Group, Inc. dba Farmers Underwriters Association; Truck Underwriters Association; Farmers Insurance Exchange; and Truck Insurance Exchange ("Moving Defendants") filed an Opposition and Request for Judicial Notice.

On July 6, 2026, Plaintiff filed a Reply.

II. Procedural Issues

As an initial matter, the Court notes that the Motion appears to have been served to an incorrect email address of "" rather than the correct email address of "cmaile@tharpe-howell.com" for defense counsel. (Emphasis added.) However, given the timely Opposition, the Court exercises its discretion to address the Motion on the merits.

III. Request for Judicial Notice

In support of the Opposition, Moving Defendants request the Court take judicial notice of 21 documents filed in the instant matter. (Opp., RJN, Exhs. A-W.) The Court GRANTS the request pursuant to Evidence Code section 452, subdivision (d).

IV. Legal Standard & Discussion

Abhari brings the instant Motion "for a definitive allocation to be made as to how the costs award is to be paid as to each of the three applicable dismissed Defendants, Defendant Farmers Insurance Exchange ... Defendant Farmers Underwriters Association ... and Defendant Farmers Group, Inc." (Motion, p. 3.)

In Opposition, Moving Defendants state the Motion should be denied as Abhari raised the Motion in regard to the wrong case; the Motion misidentifies the parties that were awarded costs in the correct case; and the Motion is based on "an unsound premise" as the Court was and is not required "to parcel out the costs it awarded among the various defendants." (Opp., pp. 5-9.)

California Rules of Court, rule 3.1113 requires that a supporting memorandum contain "a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. Rules of Court, rules 3.1113.)

Here, the Motion does not include a concise statement of the law or clear discussion of the authority supporting the Motion's position. (See Cal. Rules of Court, rules 3.1113.) Plaintiff did not cite any overarching case law or statutory authority that authorizes this Court to "clarify" the Court's prior costs award. The Court may not grant a motion absent supporting legal authority.

Further, the Motion does not address the correct parties who were previously awarded costs. (See Motion; 1/6/26 Amended Judgment.)

Thus, the Motion is DENIED.

V. Conclusion & Order

For the foregoing reasons, Plaintiff Zia Abhari's Motion for Clarification as to the Costs Award in Case No. 23STCV03400 is DENIED.

Moving party is ordered to give notice.

HEARING DATE: Mon., July 13, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Abhari

v. Farmers Ins. Exchange, et al.

CASE NUMBER: 22STCV24750/23STCV03400

NOTICE: OK

PROCEEDINGS: MOTION

TO QUASH SERVICE OF SUMMONS

MOVING PARTY: Specially

Appearing Defendant Farmers Insurance Exchange

RESP. PARTY: Plaintiff Zia Abhari

MOTION TO QUASH SERVICE OF SUMMONS

(CCP §§ 418.10)

TENTATIVE RULING:

Specially Appearing

Defendant Farmers Insurance Exchange's Motion to Quash Purported Service of

Summons on Defendant Bacon-Up Corporation is DENIED.

Moving party is ordered to

give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

ANALYSIS:

I.

Background

On May 15, 2026, Specially Appearing

Defendant Farmers Insurance Exchange filed the instant Motion to Quash

Purported Service of Summons on Defendant Bacon-Up Corporation (the “Motion”).

On June 26, 2026, Plaintiff Zia Abhari

filed an Opposition to the Motion and an Objection to the Notice of Errata

filed by Famers Insurance Exchange.

On July 6, 2026, Defendant Farmers

filed a Reply.

II.

Procedural

Issues

As an initial matter, the Court notes

the Opposition was untimely filed and served. (Code Civ. Proc., § 1005.)

III.

Discussion

Specially Appearing Defendant Farmers

Insurance Exchange moves to quash service of process on another named defendant,

Bacon-Up Corporation. (Motion, Davis Decl., Martinez Decl., Maciel Decl.) However,

Farmers Insurance Exchange has not demonstrated that it has standing to move to

quash service on behalf of Bacon-Up Corporation. Indeed, Farmers Insurance

Exchange states that it is merely “a former liability insurer of Bacon-Up”

(Motion, p. 5), and Farmers Insurance Exchange does not provide any evidence or

argument that it has any obligations, such as defense or indemnity, regarding

Bacon-Up Corporation that might give it authority to appear on behalf of

Bacon-Up Corporation in this action.

Furthermore, since filing of the

Motion, on July 9, 2026, Plaintiff filed a new Proof of Service as to Bacon-Up,

thus, rendering the subject motion moot.

Accordingly, the Motion is DENIED.

The Court notes that the denial of

this Motion is not a ruling on the merits as to whether service of the

operative summons and complaint has been properly effected on Bacon-Up

Corporation.

IV.

Conclusion

& Order

For the foregoing reasons,

Specially Appearing Defendant Farmers Insurance Exchange's Motion to Quash

Purported Service of Summons on Defendant Bacon-Up Corporation is DENIED.

Moving party is ordered to

give notice.